

Plaintiff has not filed any rebuttal to this claim of litigation privilege. The Court finds that there is therefore no showing of probability of success on the merits. Defendant's Motion to Strike is therefore **granted**. Stacey Boyd is the prevailing party on this motion and may file a motion for attorneys' fees.

7. 9:00 AM CASE NUMBER: C24-00136
CASE NAME: RONALD WEBSTER VS. GREGORY BROOKS
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY IN-HOME SUPPORTIVE SERVICES PUBLIC AUTHORITY
TENTATIVE RULING:

Introduction

Before the Court is Defendant Contra Costa County In-Home Supportive Services Public Authority's ("Defendant") Demurrer. The Demurrer relates to Plaintiff Ronald Deshawn Webster's ("Plaintiff") Second Amended Complaint ("SAC") filed on August 28, 2025. The SAC is a form complaint with six general negligence cause of action attachments. Five causes of action are against Defendant Contra Costa County In-Home Supportive Services Public Authority, and one cause of action is solely against Stacey Boyd.

Defendant demurs to Plaintiff's SAC on several grounds including failure to comply with the mandatory claim presentation requirements of the Government Claims Act, vague and unintelligible, and fails to state facts sufficient to constitute a cause of action.

For the following reasons, **the Demurrer is sustained without leave to amend.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their demurrer in detailing their efforts in reaching out to Plaintiff by email and telephone regarding the First Amended Complaint and Second Amended Complaint. (Zhurnalova-Juppunov Decl. at ¶¶ 4-5, 7-8.) However, the parties were unable to reach an agreement. (Zhurnalova-Juppunov Decl. at ¶¶ 8-9.)

Request for Judicial Notice

Defendant requests the Court take judicial notice of four items: the fact that Contra Costa County In-Home Supportive Services Public Authority is a public entity, Exhibit A, the Declaration of Contra Costa County Liability Claims Adjuster Sarah Ely; Exhibit B, Plaintiff's First Amended Complaint ("FAC"); and Exhibit D, Plaintiff's Second Amended Complaint ("SAC").

In support of the fact that Contra Costa County In-Home Supportive Services Public Authority is a public entity, Defendant quotes Contra Costa County, California Ordinance Code Sec. 55-2.402, which provides in part that "The Contra Costa County in-home supportive services public authority shall be a corporate public body, exercising public and essential governmental functions, that has all the powers necessary or convenient to carry out the delivery of in-home supportive services in Contra Costa County..." Thus, this is a fact subject to judicial notice because judicial notice may be taken of "facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code §

452(h).)

Defendant relies on *Gong v. City of Rosemead* and *Fowler v. Howell* in support of judicial notice of Exhibit A, the Sarah Ely Declaration. ((2014) 226 Cal.App.4th 363 and (1996) 42 Cal.App.4th 1746, respectively).

In *Fowler*, the trial court and the Second District Court of Appeal both took notice of a declaration of a state employee familiar with the records of the Board of Control who searched and concluded that the records of the State Board of Control did not contain a claim filed by Petitioner. (*Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1752-1753; citing Evid. Code §§ 452(c), 459.) In *Gong*, the Court noted, “[i]f a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity's records do not show compliance.” (226 Cal.App.4th at p. 376.)

Accordingly, the Court takes judicial notice of Exhibit A. Under *Fowler* and *Gong*, the Court may take judicial notice that the public records from Defendant City of Richmond do not contain a claim from Plaintiff.

Exhibits B and D are both filings of this instant case and are subject to judicial notice because they are records of this court. (Evid. Code §452(d).)

Judicial notice of Defendant’s four items is granted.

Brief Factual Background

Plaintiff seeks monetary damages against Defendant Contra Costa County In-Home Supportive Services Public Authority (IHSSPA), a public entity. It is hard to decipher what events led to Plaintiff seeking monetary damages. On the last page of the SAC Plaintiff pleads that his mom was negligently cared for, funds for caregivers were misappropriated, Plaintiff was defamed. (See SAC at p. 9.)

However, Plaintiff failed to allege compliance with the claim presentation requirements of the Government Claims Act (Paragraph 9 of the form complaint was not checked). Plaintiff does request leave to amend but does not provide any theory of how he can amend his Complaint to comply with the Government Claims Act.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

To state a cause of action against a public entity, “the general rule that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded.” (*Richardson-Tunnell v. School Ins. Program* (2007) 157 Cal.App.4th 1056, 1061.) Plaintiff’s counsel must specifically identify the grounds for statutory liability against a public

entity, including citing the statute. (*Searcy v Hemet Unified Sch. Dist.* (1986) 177 CA3d 792, 802 [child injured by automobile near school only alleged “enactments” in complaint].) A plaintiff must also allege facts to show that the “cause of action lies outside the breadth of any applicable statutory immunity.” (*Soliz v. Williams* (1999) 74 Cal.App.4th 577, 585.) However, these rules do not deprive the plaintiff of the benefit of the general principle that the courts should liberally construe a complaint and generously allow amendments to cure deficiencies. (*Nestle v City of Santa Monica* (1972) 6 Cal.3d 920; *Keyes v Santa Clara Valley Water Dist.* (1982) 128 Cal.App.3d 882, 885.)

Applicable Law

As a condition precedent to a suit against a public entity, the Government Claims Act requires the timely presentation of a written claim for money or damages. (Gov. Code §§ 911.2, 945.4, 950.2.) The failure to present a timely claim bars the plaintiff from bringing suit. (*Phillips v. Desert Hospital District* (1989) 49 Cal.3d 699, 708; *Abelleira v. District Court of Appeal* (1941) 17 Cal.2d 280, 293; *Torres v. County of Los Angeles* (1989) 209 Cal.App.3d 325, 337.) The claim must be presented no later than six months after the accrual of the cause of action. (Gov. Code § 912.2(a).)

Likewise, Government Code section 950.2 states that any cause of action which is barred against the employing public entity is barred against the public employee. “It is settled that the filing of a timely claim against the employing public entity is a condition precedent to a tort action against either the public entity or the employee. (Citations.)” (*Mazzola v. Feinstein* (1984) 154 Cal.App.3d 305, 310; Gov. Code § 915(c)(1).)

Compliance with the Government Claims Act is an element of the cause of action and must be pled and proved by plaintiff. (*DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 990.) Because compliance is an essential element of a damages cause of action, a plaintiff must allege facts showing compliance, or an excuse from compliance, or the complaint will be subject to general demurrer for failure to state a cause of action. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239; *Ovando v. County of Los Angeles* (2008) 159 Cal.App.4th 42, 65.) The reason that facts must be pled is because the failure to comply with the Government Claims Act is “fatal to the plaintiff’s legal action and it must be dismissed.” (*Tietz v. Los Angeles Unified School Dist.* (1965) 238 Cal.App.2d 905, 911.)

Analysis

Government Claim Presentation Requirement

Demonstrating compliance with the Claims Act is a condition precedent to maintaining a cause of action, and, thus, an essential element of Plaintiff’s claims against Defendants. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1240.) Therefore, when the judicially noticed facts show that Plaintiff did not comply with the Claims Act, the Court should sustain a demurrer. (*Id.*; *Castro v. Sacramento County Fire Protection Dist.* (1996) 47 Cal.App.4th 927, 933-934.)

Although this is a Demurrer, a public entity may, through judicial notice of its own records, demonstrate noncompliance with the Claims Act. (*Gong, supra*, 226 Cal.App.4th at p. 376 [“...the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity’s records do not show compliance.”]; *Fowler, supra*, 42 Cal.App.4th at p. 1752 [“The trial court also took judicial notice that the records of the State Board of Control do not contain a claim filed by Fowler concerning Howell’s allegedly false accusations...We likewise take judicial notice of these records.”].)

Defendant argues that Declaration of Sarah Ely establishes that Plaintiff did not serve a government claim before filing this lawsuit. Plaintiff alleges that wrongful acts and omissions by IHSSPA occurred

in 2022. (SAC, p. 1, 2, 4 and 6.) The causes of action asserted against defendant Boyd allegedly occurred in 2024-2025. (SAC, p. 5, 6.) Defendant also points out that Plaintiff failed to allege compliance with the claim presentation requirements of the Government Claims Act by failing to check the box in Paragraph 9 in the form complaint.

In opposition, Plaintiff asks the Court for leave to amend as he is actively verifying matters related to the Government Claims Act compliance and the identification of the proper public entity defendant, and that such matters are curable by amendment. (Opposition at p. 1: 21-25; p. 2: 17-19; Webster Decl. ¶¶ 2-4.) Plaintiff's Opposition does not argue the merits but rather requests leave to amend. (Opposition generally.)

Here, although Plaintiff requests leave to amend, Plaintiff does not demonstrate, with any authority, how amendment can cure the issue of failure to file a government claim with Contra Costa County. The Court concludes that Plaintiff cannot allege new facts that would cure the failure to comply with the Government Claims Act.

Uncertainty

Uncertainty is a well-established ground of demurrer. (*Martin v. Bank of San Jose* (Cal. App. 1929) 98 Cal. App. 390.) The objection of uncertainty does not go to failure to allege sufficient facts but to doubt as to what the pleader means by the facts alleged. (*Brea v. McGlashan* (1934) 3 Cal. App. 2d 454.) A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*Butler v. Sequeira* (1950) 100 Cal. App. 2d 143.) A Complaint is ambiguous and uncertain where it cannot be ascertained therefrom whether acts complained of were committed by defendants in their individual capacity, or in one of other capacities in which they are alleged to have acted. (*Lapique v. Ruef* (1916) 30 Cal. App. 391.)

The SAC lacks specific facts supporting each cause of action against IHSSPA and is also completely devoid of any factual allegations against IHSSPA. The only factual allegations are found within the body of the cause of action against Stacy Boyd. (See SAC at p. 8.) The other five negligence causes of action attachments do not contain any factual allegations and fail to give any notice to IHSSPA of the claims against it. (See SAC at pp. 4-7, 9; *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) It is also unclear in what capacities each individual Defendant is being sued under, whether in their individual capacity, capacity as an employee or any other capacity. Thus, all causes of action are also subject to a general demurrer and a special demurrer under Code of Civil Procedure section 430.10.

Conclusion

For the reasons explained above, **the Demurrer is sustained without leave to amend.**

8. 9:00 AM CASE NUMBER: C24-00233

CASE NAME: LOURDES CARRILLO VS. WATERS LAUNDRIES, INC.

***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CCP 664.6 AND FOR CONTRACTUAL CONSIDERATION PLUS FEES AND COSTS, TOTALING \$7,663.50; MEMORANDUM OF POINTS AND AUTHORITIES**

FILED BY: CARRILLO, LOURDES

TENTATIVE RULING: